



REPUBLIC OF THE PHILIPPINES
COMMISSION ON AUDIT
Commonwealth Avenue, Quezon City

Annex D

10-10-2017

TRAINING PROGRAM AGREEMENT

This AGREEMENT is made and executed on _____, in _____, Philippines between and among:

The **COMMISSION ON AUDIT**, with address at Commonwealth Avenue, Quezon City, represented herein by **GLADIES GRACE P. GURANGO**, in his/her capacity as the **On-the-Job Training (OJT) Coordinator (OC)**, hereinafter referred to as "**Host Training Establishment (HTE)**";

-and-

The **POLYTECHNIC UNIVERSITY OF THE PHILIPPINES**, an educational institution duly recognized by the Commission on Higher Education, with office address at Anonas St. Sta. Mesa Manila, Philippines, represented herein by its Vice President for Academic Affairs, **DR. EMANUEL C. DE GUZMAN**, hereunto duly authorized and hereinafter referred to as the "**Partner School (PS)**";

[Collectively referred to as "Parties" wherein notices and general matters may be delivered to by hand, registered mail, or other acceptable means]

The parties agree to undertake their responsibilities and other matters, as follows:

1. Responsibilities of the Parties Involved

1.1 The HTE, represented by the OC, assigned to Human Resource Database Management Information Division, shall:

- 1.1.1 Facilitate the processing of the documents of Trainees in coordination with the School OJT Adviser (SOA) and the OJT Supervisor (OS);
- 1.1.2 Ensure adherence of the OJT Supervisor (OS) to the COA Memorandum governing the conduct of the OJT Program at the HTE;
- 1.1.3 Ensure that learners with disabilities are equally provided with skill development opportunities to optimize their participation in the OJT Program of the HTE;
- 1.1.4 Orient Trainees on the standard rules and regulations of the HTE as scheduled by OC;
- 1.1.5 Ensure that Trainees do not perform tasks and duties of the HTE such as:
 - a. Conduct of actual cash examination, post-audit, auditorial, and technical review about revenue and receipts, expenditures, and uses of funds and property;
 - b. Preparation of Accomplishment Report, Special/Fraud Audit Report, Annual Audit Report, Annual Financial Report and other financial reports;
 - c. Execution of essential infrastructure and other large-scale projects;
 - d. Establishment and implementation of risk management framework or process;

- e. Provision of services that could expose trainees to workplace hazards as deemed identified by the Committee on Occupational Safety and Health and the Medical and Dental Unit, Human Resource Management Office, Administration Sector, both of the HTE;
- f. Transactions involving highly technical or confidential information, such as administrative case investigations;
- g. Other critical tasks and responsibilities as identified by the head of Sector/Cluster/Office/Division/Unit; and
- h. Transactions and errands that are personal.

- 1.1.6 Develop feedback mechanism for Trainee, SOA, and OS;
- 1.1.7 Provide monitoring and evaluation reports or other information on Trainees' performance as may be required by SOA;
- 1.1.8 Notify the Grievance Committee, through the SOA, in writing of any trainee misconduct or contract violations;
- 1.1.9 Assist Trainee in solving problems or issues that may arise in the course of the OJT Program;
- 1.1.10 Develop and update a database of Trainee;
- 1.1.11 Conduct exit interview prior to the issuance of Certificate of Completion (COC); and
- 1.1.12 Prepare and release COC.

1.2 The PS, represented by the SOA, shall:

- 1.2.1 Execute this duly notarized Agreement;
- 1.2.2 Provide Trainees with medical and dental services, including certifications from duly licensed medical doctors and dentists, to ensure their preparedness before deployment to the HTE;
- 1.2.3 Ensure that Trainees have suitable insurance coverage, including travel, medical, and health, throughout their participation in the OJT Program at the HTE;
- 1.2.4 Before their deployment to the HTE, conduct a mandatory pre-internship orientation or seminar for Trainees, covering work environment topics including proper work ethics and laws against sexual harassment;
- 1.2.5 Conduct on-site monitoring and assessment for Trainees;
- 1.2.6 Ensure that duly signed endorsement letters are issued to Trainees before deployment to the HTE; and
- 1.2.7 Work together with the OC on any issue that may arise affecting the performance of Trainees.

1.3 The Trainee shall:

- 1.3.1 Sign and submit all the documents necessary to take part in the OJT Program of the HTE;
- 1.3.2 Coordinate with the OS to finalize the training plan;
- 1.3.3 Comply with the provisions of this Agreement, including the rules and regulations of the HTE;
- 1.3.4 Undergo the required orientation on the OJT Program as scheduled by the OC;
- 1.3.5 Maintain confidentiality of all data, when and where appropriate, during and after the training period, where such information is not within the public domain and is indicated or understood to be confidential;
- 1.3.6 Complete the agreed duration of training unless the Trainee was found to have committed any of the violations provided under Items 2.1.1 to 2.1.3 and 2.1.4(c) hereof;
- 1.3.7 Demonstrate the highest level of integrity and professionalism at all times, which includes arriving on time at the assigned office, notifying OS immediately in case of leave of absence, wearing the OJT Identification Card, showing courtesy to officials and employees, and the submission of deliverables on or before the given deadline; and
- 1.3.8 Undergo exit interview with OC.

2. Termination of the Agreement

- 2.1 The Parties reserve the right to pre-terminate the training contemplated in this Agreement by serving a written notice to the other party at least 30 working days before the intended date of termination. However, such pre-termination is permissible only based on any of the following grounds:
- 2.2 Disciplinary Termination (requires a grievance resolution):
 - 2.2.1 Violation of any of the provisions of this Agreement and of Commission on Higher Education Memorandum Order (CMO) No. 104, s. 2017, dated December 28, 2017 and Department of Education Order (DO) No. 30, s. 2017, dated June 5, 2017;
 - 2.2.2 Changing provisions of this Agreement without consent of the other parties;
 - 2.2.3 Non-compliance with this Agreement;
 - 2.2.4 Other violations:
 - a. Violations of the PS:
 - Making false statements/misstatements of student records/ documents to make it appear that the student is qualified to undertake the OJT Program at the HTE; and

- Failing to provide free medical and dental services and appropriate insurance coverage.

b. Violations of the HTE:

- Placing Trainees in venues which degrade, debase, or demean the intrinsic worth and dignity of Trainees without just cause; and
- Such other acts similar or analogous to the foregoing and activities classified as human trafficking under RA No. 9208, and such other similar issuances that are in violation of the aforecited CMO or DO.

c. Violations of the Trainees:

- Any act of gambling, theft, and other similar illegal acts;
- Submitting forged or fraudulent documents;
- Any act in violation of the HTE's rules and regulations; and
- Any act in violation of the laws of the country.

2.3 Medical Termination:

- 2.3.1 This refers to a non-disciplinary termination of this Agreement due to illness, for which the Trainee is unlikely to fulfill duties and responsibilities outlined in this Agreement and the training plan due to poor recovery caused by any illness/wound/injury based on the recommendation of the PS.

3. Dispute Resolution, Governing Law, and Venue of Actions:

- 3.1 Any and all disputes arising out of or relating to this Agreement shall be subject to good faith negotiations between the Parties before imposition of applicable sanctions under the COA Memorandum governing the conduct of OJT at the HTE, Grievance Machinery under the aforecited CMO, and other laws of the country.

4. Mutual Agreement of the Parties Involved:

- 4.1 The HTE and PS mutually agree that neither party shall unlawfully discriminate against any Trainee on the basis of race, ethnicity, age, gender, religion, sexual orientation, gender identity, gender expression, disability, economic status, and other diverse backgrounds.

5. Confidentiality and Waiver:

- 5.1 It is understood that all information, methodologies, and all other related documents, manuals, operational or technical matters that the HTE shall make available to Trainee shall be used for the sole purpose of performing the latter's tasks under the OJT Program;
- 5.2 It is understood that all information gathered by the PS and Trainee about the operations of the HTE are classified as confidential. The PS and Trainee cannot use any confidential information or data from the HTE to create intellectual property without the express written approval of the HTE;

- 5.3 The PS and the Trainee renounce and waive any claim against the HTE for any injury or loss that the Trainee may sustain or may suffer, personal or pecuniary, in the performance of the Trainee's duties and functions during the OJT Program, unless such is attributable to the negligence or fault of any of the officers or personnel of the HTE; and

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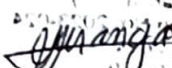
- 5.4 That neither of the parties shall be held liable in any way for the failure to achieve or perform any provision of this Agreement if such failure shall be caused by any law, rule or regulation of any constituted public authority or shall be due to any force majeure event or any cause beyond the control of the parties in default.

6. Effective Date & Duration of Agreement

This Agreement shall commence on July 22, 2024 and shall be valid for three (3) years or until the Trainee has finished the equivalent total training hours required which is 250 hours unless terminated.

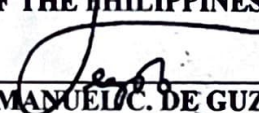
IN WITNESS WHEREOF, the parties hereunto affix their signatures on the ____ day of _____, _____ at _____, Philippines.

COMMISSION ON AUDIT



GLADIES GRACE P. GURANGO
Coordinator

POLYTECHNIC UNIVERSITY
OF THE PHILIPPINES



DR. EMANUEL C. DE GUZMAN
Vice President for Academic Affairs

Signed in the Presence of



JIMMY O. ROXAS, JR.
ID No.:



ENGR. RAMIR M. CRUZ
Dean, Institute of Technology
ID No.:

ACKNOWLEDGMENT

REPUBLIC OF THE PHILIPPINES) S.S.
City/Municipality

AUG 29 2024

BEFORE ME, a Notary Public for and in the **CITY OF MANILA** this _____ day of _____, personally appeared the following persons who presented to me their competent proof of identities as follows:

Name	Type of ID	Number	Expiry Date
GLADIES GRACE P. GURANGO			
EMANUEL C. DE GUZMAN			

Known to me to be the same persons who executed the foregoing Training Program Agreement, and they acknowledged to me that the same is their free and voluntary act and deed, as well as of the institution herein represented.

This Agreement consists of six (6) pages, including this page.

WITNESS MY HAND AND SEAL.

Doc. No. 52 :
Page No. II :
Book No. XVI :
Series of 2024.

ATTY. MELCHOR A. PELAJA
Notary Public for Manila
Notarial Commission No. 2023-024
Until December 31, 2024
Attorney's Roll No. 70069
IBP Lifetime Member No. 016835, 05-13-17
PTR No. 1527844, 1/2/24, Manila
MCLE Compliance No. VII-0004105; 07-22-21
4846 Guadal Canal St., Sta. Mesa, Manila